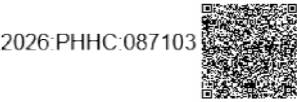


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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33382-2026
Decided On: 09.06.2026

LABH SINGH

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Atul, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.0113 dated 13.05.2026 under Section 419, 420, 465, 466, 467, 468, 471, 120-B IPC (Section 319(2), 318(4), 336(2), 337, 338, 336(3), 340(2), 61(2) of BNS) registered at Police Station Fatehgarh Sahib, District Fatehgarh Sahib, Punjab (P-1).

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the petitioner had duly joined the investigation during the course of the inquiry and that all relevant documents pertaining to the matter are already in the possession of the investigating agency. Learned counsel further submits that the allegations levelled in the FIR are wholly false, baseless, and have been exaggerated with a

view to impart undue gravity to the case. It is argued that the parcel of land purchased by the petitioner was acquired exclusively from lawful funds generated through the sale of his pre-existing ancestral property. Learned counsel also submits that the petitioner is ready and willing to join the investigation and extend full cooperation to the investigating agency as and when required.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Yatin Bunker, AAG Punjab accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner by stating that the petitioner, by impersonating one Inder Singh, allegedly procured the execution of a sale deed on the basis of forged and fabricated documents. In view of the serious nature of the allegations and the role attributed to the petitioner, learned State counsel contends that the petitioner is not entitled to the concession of anticipatory bail.

3. Analysis

Having heard learned counsel for the parties and perused the material available on record, this Court is of the considered view that the dispute in the present case is civil in nature relating to the possession of property in dispute but has been given the colour of criminal liability. Further, petitioner had joined the investigation during the course of inquiry and the relevant documents are already stated to be in the possession of the investigating agency. The allegations levelled against the petitioner are matters which shall be duly examined during the course of investigation and trial. At this stage, no useful purpose would be served by subjecting the petitioner to

custodial interrogation, particularly when he has expressed his willingness to join and cooperate with the investigation.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

09.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*